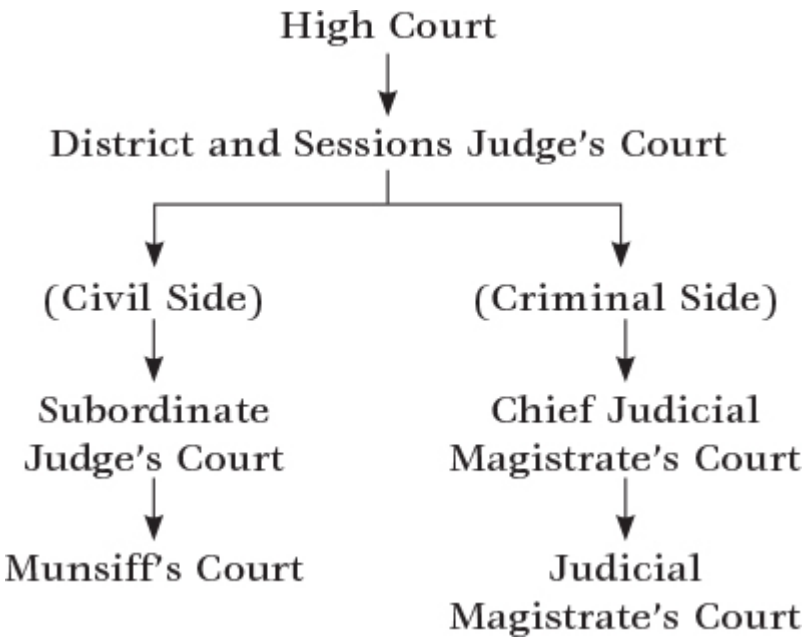
The organisational structure, jurisdiction and nomenclature of the subordinate judiciary are laid down by the states. Hence, they differ slightly from state to state. Broadly speaking, there are three tiers of civil and criminal courts below the High Court. This is shown as follows:



The district judge is the highest judicial authority in the district. He/she possesses original and appellate jurisdiction in both civil as well as criminal matters. In other words, the district judge is also the sessions judge. When he/she deals with civil cases, he/she is known as the district judge and when he/she hears the criminal cases, he/she is called as the sessions judge. The district judge exercises both judicial and administrative powers. He/she also has supervisory powers over all the subordinate courts in the district. Appeals against his/her orders and judgements lie to the High Court. The sessions judge has the power to impose any sentence including life imprisonment and capital punishment (death sentence). However, a capital punishment passed by him/her is subject to confirmation by the High Court, whether there is an appeal or not.

Below the District and Sessions Court stands the Court of Subordinate Judges on the civil side and the Court of Chief Judicial Magistrates on the criminal side. The subordinate judge exercises unlimited pecuniary jurisdiction over civil suits[3]. The chief judicial magistrate decides criminal cases which are punishable with imprisonment for a term of up to seven years.

At the lowest level, on the civil side, is the Court of Munsiff and on the criminal side, is the Court of Judicial Magistrate. The munsiff possesses limited jurisdiction and decides civil cases of small pecuniary stake[4]. The judicial magistrate tries criminal cases which are punishable with imprisonment for a term of up to three years.

In some metropolitan cities, there are city civil courts (chief judges) on the civil side and the courts of metropolitan magistrates on the criminal side.

Some of the States and Presidency towns have established small causes courts[5]. These courts decide the civil cases of small value in a summary manner. Their decisions are final, but the High Court possesses the power of revision.